

Court finds that each party was unsuccessful in part and each had substantial justification for their position. Verifications were not provided timely, but Plaintiff did not adequately meet and confer before bringing this dispute before the Court. No sanctions will be imposed.

Going forward, the parties are required to meet and confer **by telephone or in person** as required by the Code of Civil Procedure. Additionally, the Court notes that Plaintiff's single Motion concerns five different sets of discovery and seeks further responses to nearly everything requested. Defendant's response to the Separate Statement runs to nearly 400 pages. To promote judicial economy, the parties are encouraged to contact the judicial assistant and request an informal discovery conference to narrow the issues prior to filing future discovery motions.

Plaintiff's Motion to Compel Further Verified Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admissions, Set One; and Requests for Production of Documents, Sets One and Two is **GRANTED** in part, as detailed above. Plaintiff is ordered to submit a new proposed order consistent with this ruling. Defendant will be required to serve further responses as detailed above within 30 days of notice of entry of order.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion to Strike Jury Demand and Posting of Jury Fees: Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025. Defendant moves pursuant to CCP 435(b)(1) and 436 for an Order striking Plaintiff's jury demand and posting of jury fees. Plaintiff opposes the Motion.

PAGA Claims: Plaintiff and Defendant agree that there is no right to a jury trial on the PAGA claims. "[A] PAGA action is an administrative enforcement action conducted in court on behalf of the state by an aggrieved employee who possesses 'the same legal right and interest' as the state. (*See Iskanian, supra*, 59 Cal.4th at 380.) However, that legal right and interest does not include the right to a jury trial. (*McHugh v. Santa Monica Rent Control Bd.* (1989) 49 Cal.3d 348.)" *LaFace v. Ralphs Grocery Co.* (2022) 75 Cal.App.5th 388, 397.

Individual Claims: Defendant argues that Plaintiff is not entitled to a jury trial on his individual claims because: 1) the claims are intertwined and cannot be bifurcated; 2) judicial estoppel precludes jury trial on any claims, because Plaintiff did not oppose the motion to consolidate, agreed to vacate his individual jury trial, and has referred to the matter as "PAGA-only" in prior filings; and 3) Plaintiff posted jury fees late based on the older, PAGA action's deadline.

"As a general matter, therefore, the California Constitution affords a right to a jury trial in common law actions at law that were triable by a jury in 1850, but not to suits in equity that were not triable by a jury at that time. (*C & K Engineering Contractors v. Amber Steel Co.* (1978) 23 Cal.3d 1, 8–9 [151 Cal. Rptr. 323, 587 P.2d 1136].) Under this test, it is the substance of a cause action—not its title or form—that is controlling. (*Nationwide Biweekly, supra*, 9 Cal.5th at p. 315.) In making this evaluation we look to the gist of the action: whether the nature of the rights involved and the facts of the particular case show that it is legal and therefore cognizable at law. (*Ibid.*)" *LaFace v.*

Ralphs Grocery Co. (2022) 75 Cal.App.5th 388, 395.

Plaintiff's individual claims for Labor Code violations are generally triable to a jury. Plaintiff's individual claims are for unpaid wages, overtime, meal and rest period premiums, business expense reimbursement, wage statement penalties, and waiting time penalties, for which he seeks damages or statutory penalties. The gist of the individual claims is an action at law, which carries the right to a jury trial. *See generally LaFace, supra*. "When the legal and equitable causes of action or issues presented in a case are severable, past California decisions establish that a party retains the right to a jury trial of the severable legal issues and a court trial of the severable equitable issues. (See, e.g., *Connell v. Bowes* (1942) 19 Cal.2d 870, 871 [123 P.2d 456] ["It is now established in this state ... that if a complaint states two complete rights of action, one legal and one equitable, a jury trial may be obtained upon the issues raised by the legal cause"]; see generally 7 Witkin, Cal. Procedure, *supra*, Trial, § 86, p. 113 ["Where the action is of a hybrid character, raising both legal and equitable issues, a party is entitled to a jury trial of the severable legal issues"].)" *Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279, 316-317. The question, then, is whether Plaintiff waived the right to a jury trial of his legal claims through the consolidation of the first-filed PAGA action with the later-filed individual action.

"Our Constitution treats the historical right to a jury resolution of disputes that have been brought to a judicial forum as fundamental, providing that in "a civil cause," any waiver of the inviolate right to a jury determination must occur by the consent of the parties to the cause as provided by statute. (Cal. Const., art. I, § 16.) The statute implementing this constitutional provision is section 631. It holds inviolate the right to trial by jury, and prescribes that a jury may be waived in civil cases only as provided in subdivision (d) of its provisions. (§ 631, subd. (a).) Subdivision (d) describes six means by which the right to jury trial may be forfeited or waived, including failure to appear at trial, failure to demand jury trial within a specified period after the case is set for trial, failure to pay required fees in advance or during trial, oral consent in open court, or written consent filed with the clerk or the court." *Grafton Partners v. Superior Court* (2005) 36 Cal.4th 944, 951.

Here, the Court finds that Plaintiff did not waive his right to a jury trial on his individual claims by failing to oppose the Defendant's motion to consolidate the two actions. Further, the Court finds that the posting of jury fees was timely, in that fees were posted within 365 days of the filing of the Complaint for which Plaintiff was entitled to a jury trial (the individual claims). CCP § 631. The later order consolidating cases did not shorten Plaintiff's window to file jury fees on the jury-triable claims.

Finally, the Court finds that Plaintiff's individual claims are not necessarily so intertwined with the PAGA claims that bifurcation is not feasible. The Court intends to set a single, sequential trial, with a jury phase on the individual claims to proceed first, immediately followed by a bench phase if necessary, on the PAGA claims before the same judge. If the legal issues are tried before the equitable issues, the jury's determination of the legal issues may curtail or foreclose a trial of the equitable issues. *Hoopes v. Dolan* (2008) 168 Cal. App. 4th 146, 157. In any subsequent trial of the equitable issues, the judge is bound by the jury's findings of fact on common issues. *Id.* at 158-161 (judge may make own findings only on issues based on distinct facts that jury did not decide).

Defendant's Motion to Strike Jury Demand and Posting of Jury Fees is **DENIED**. The proposed order will be modified.